

clients rather than about the monetary impact. “Such moonlighting activities may also have ramifications under the contract an IT services firm would have signed with its client. There are contracts that prevent the service provider from allowing an employee—who in that role is dedicated to the operations of a client—from doing anything else,” says Abe Abraham, Partner at law firm Cyril Amarchand Mangaldas. “All the more reason why you need employees to be doing what they are supposed to be doing. Otherwise, these could expose their employer to resultant negative consequences.” There is more at stake for the employer than the employee because liabilities are higher on the employer when something goes wrong, point out experts. “Suppose an employee violates the end-user agreement of a licensed software to use it (for the side gig); who is going to be responsible for it? It will be the employer’s responsibility, not the employee’s,” says Ballurkar of Experis IT.

To be fair, no law currently prohibits dual employment in India other than the Factories Act, which mostly exempts the IT sector. But any legally allowed clauses an employee has agreed to by signing an employment contract are legally binding on them, experts say. For in-

stance, if a contract says an employee has to work 18 hours a day, that won’t work legally. But agreeing to not take on a side job will prevail. All leading IT majors in India have stringent clauses in their contracts prohibiting employees from taking on a second job. Infosys’s contract, for instance, clearly mentions that an employee cannot take up full-time or part-time employment in any business activity without the company’s consent. “The consent may be given subject to any terms and conditions that the Company may think fit and may be withdrawn at any time at the discretion of the Company,” a typical contract says.

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MOST EXPERTS ADMIT that they do not know the extent of the problem. Others say moonlighters may only account for a small percentage of the workforce. For instance, Tech Mahindra MD & CEO C.P. Gurnani said

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WHO SAID WHAT



AUG 3

► **SWIGGY ANNOUNCES MOONLIGHTING POLICY**

“Working on such projects outside of one’s full-time employment can significantly contribute to both professional and personal development”

AUG 20

► **RISHAD PREMJI, EXECUTIVE CHAIRMAN OF WIPRO, TWEETS ABOUT MOONLIGHTING**

“This is cheating—plain and simple”



AUG 24

► **IT VETERAN MOHANDAS PAI SPEAKS ABOUT IT ON BT TV**

“No, moonlighting is not cheating”

AUG 26

► **N. GANAPATHY SUBRAMANIAM, COO OF TCS, AT BT INDIA@100**

“If we make something like this [moonlighting] for short-term gains, in the long term we will lose out”

